

PROCESS GUIDANCE: WHICH OF THE TWO ROUTES YOU ARE IN

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Docket No.: CP-40-CR-0012760-2024

County: Luzerne

Route: Expungement Following an Unconditional Pardon

READ THIS BEFORE YOU FILE ANYTHING

The census records two routes for this family, and they are told apart by something neither of these forms asks:

- a Rule 790 petition, where the automatic route has not cleared the record: Form PA-RCRIM-P-790-PETITION.
- no filing - process guidance, where it has: this page.

If the automatic route has already cleared the record, there is nothing here to file. A packet that only ever told you to file would be telling you to do work you may not need to do, and to pay for it.

HOW TO FIND OUT WHICH ONE YOU ARE IN

First obtain a copy of the pardon from the Pennsylvania Board of Pardons. LegalEase does not collect, inspect or authenticate it. Confirm from that copy whether the pardon is unconditional or conditional; if the document and your answer disagree, correct the packet before proceeding.

For an unconditional pardon, the Board of Pardons transmits eligible records to AOPC quarterly, AOPC sends the record to the court of common pleas, and the court orders expungement after confirming the criteria. Record the date you checked whether that quarterly process cleared your record:

Quarterly verification date: _____

Ask the Clerk of Courts for the county in the caption above what the docket now shows for this case. The petition in this packet also has a box for attaching your Pennsylvania State Police criminal history, and that history is the document that shows what is still on the record. If the record is already clear, stop; if it is not, file the petition.

IF YOU DO FILE

File the petition with the Clerk of Courts. The order in this packet is tendered WITH the petition -- it is the order the judge signs, not a document you fill in or sign. The platform has written only the style of the case into it. Do not sign the order.

The petition asks for a great deal the platform does not hold: the presiding official who heard the case and their court address, the affiant on the complaint and theirs, the Offense Tracking Number, and every charge row with its title, section, subsection, description, counts, grade and disposition. All of it is listed

in this packet's participant instructions, by the words printed beside each blank.

BLANKS THIS PACKET HOLDS A VALUE FOR AND COULD NOT PRINT

The blanks below are ones the platform has your answer for. It did not print them, because your answer is longer than the blank the official form draws, and this packet will not shorten one of your own details to make it fit or print it too small to read. Write each one in by hand, in the shorter form the blank has room for, before you file:

- PA-RCRIM-P-790-PETITION, "Address, state": the packet holds Pennsylvania.
- PA-RCRIM-P-790-PETITION, "Address, ZIP": the packet holds 18702-2214.

Nothing was truncated and nothing was guessed. This packet's field map records each of these blanks against the value held and the measurement that would not fit.

STOP AND GET HELP

- The participant has not yet obtained a pardon. If that is you, the pardon application itself is outside this packet and requires a referral.
- You cannot determine from the pardon document whether it is conditional or unconditional.
- The record still appears after the quarterly cycle and it is unclear whether the fallback Rule 790 petition is available.

WHAT THIS PACKET IS NOT

This is a prepared petition, a tendered official order and this guidance page. It is not legal advice, it is not filed for you, and it does not decide whether the court will order expungement.

Route carried by this page: obligation:unit:PA:pa_pardon_expungement:pa_pardon_automatic_route

Route carried by the petition in this packet:

obligation:unit:PA:pa_pardon_expungement:pa_pardon_fallback_petition

In the Court of Common Pleas
County of Luzerne
____ Judicial District



Commonwealth of Pennsylvania
v
Maria-Alejandra O'Shaughnessy-Whitfield

Docket No: CP- - - -20

Petition for Expungement Pursuant to Pa.R.Crim.P. 790

AND NOW, the petitioner avers the following and requests that this petition for expungement pursuant to Pa.R.Crim.P. 790 be granted for the reasons set forth below.

PETITIONER INFORMATION						
Full Name: Maria-Alejandra O'Shaughnessy-Whitfield			DOB: 1968-12-31		Social Security Number:	
Address: 1188 Upper Notch Crossing Road, Apartment 14B			Alias(es):			
Wilkes-Barre Township						
CASE INFORMATION						
List name, address of the Judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:						
Judge:			Address:			
Philadelphia Municipal Court or Court of Common Pleas Docket Number: CP-40-CR-0012760-2024			Offense Tracking Number (OTN):			
Name of Arresting Agency:			Date of Arrest:		Date on Complaint:	
List name and mailing address of the affiant as shown on the complaint, if available:						
Name of Affiant:			Address:			
List specific charges, as they appear on the charging document, to be expunged and the disposition of each charge (please attach additional sheet(s) of paper if necessary):						
PA Statute (Title)	Section	Subsection	Statute Description	Counts	Grade	Disposition
If the sentence imposed included a fine, costs or restitution, has the amount due been paid?						☐ Yes ☐ No
List the reason(s) for the expungement (please attach additional sheet(s) of paper if necessary):						
☐ I have attached a copy of my Pennsylvania State Police Criminal History which I have obtained within 60 days before filing this petition.						
☐ I have not attached a copy of my Pennsylvania State Police Criminal History. State reason(s) below:						

When this petition is filed with the Clerk of Courts, the petitioner shall serve a copy upon the attorney for the Commonwealth.

I, the undersigned petitioner, avers that the facts set forth in this petition are true and correct to the best of my personal knowledge or information and belief, and are made subject to the penalties of unsworn falsification to authorities under 18 Pa.C.S § 4904.

Signature of Petitioner

Date

Commonwealth of Pennsylvania

v.

Maria-Alejandra O'Shaughnessy-Whitfield

IN THE COURT OF COMMON PLEAS OF
Luzerne COUNTY,
PENNSYLVANIA

CRIMINAL DIVISION

DOCKET NO: CP-40-CR-0012760-2024

ORDER

AND NOW, this ____ day of _____, 20____, after consideration of the
_____ presented by _____,
it is ORDERED that the Petition/Motion is _____.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the defendant's arrest record, including the criminal history record information, pertaining to the captioned proceedings.

☐ In accordance with Pa.R.Crim.P. 320, the criminal charges in the above-captioned case specified below are dismissed and the defendant's arrest records regarding these charges shall be expunged except as provided by law.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the official and unofficial arrest and other criminal records pertaining to the captioned proceedings in accordance with Section 119 of The Controlled Substance, Drug, Device and Cosmetic Act (35 P.S. § 780-119).

The information required under Pa.R.Crim.P. 790 appears on the attached page(s) which is hereby incorporated into this ORDER by reference.

BY THE COURT:

Pursuant to Pa.R.Crim.P. 790, the following information is provided:

1. Petitioner Name: Maria-Alejandra O'Shaughnessy-Whitfield
2. Alias(es): _____
3. Petitioner's Address: 1188 Upper Notch Crossing Road, Apartment 14B, Wilkes-Barre Township, Pennsylvania, 18702-2214
4. Petitioner's Date of Birth: 1968-12-31
5. Petitioner's Social Security Number: _____
6. Name and address of the judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:
7. Name and mailing address of the affiant as shown on the complaint, if available:
8. Docket Number: CP-40-CR-0012760-2024
9. Offense Tracking Number (OTN): _____
10. The date on the complaint, or the date of arrest, and if available, the criminal justice agency that made the arrest:
11. The specific charges, as they appear on the charging document, to be expunged and applicable dispositions (attach additional sheets if needed):
12. If the sentence includes a fine, costs, or restitution, whether the amount due has been paid: _____
13. The reason for expungement:
14. The criminal justice agencies upon which certified copies of the order shall be served: